

23STLC02679 23STLC02679

County: los-angeles

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Case Number: 23STLC02679 Hearing Date: September 15, 2026 Dept: 26

TENTATIVE RULING:

Judgment Creditor Richard Heng

Taing dba USA Donuts' Motion to Compel Responses to Request to Inspect Writings to Enforce Order Dated March 14, 2024, and Request for Sanctions is denied without prejudice.

Analysis:

On April 24, 2023, Judgment Creditor Richard Heng Taing DBA USA Donuts ("Judgment Creditor") filed the instant action against Judgment Debtor Worldwide ATM, Inc. ("Judgment Debtor"). Judgment Debtor filed an Answer and Cross-Complaint on June 28, 2024 and July 5, 2023, respectively.

On March 5, 2024, the Court granted defense counsel's motion to be relieved as counsel. (Minute Order, 03/05/24.) On March 14, 2024, the Court granted Judgment Creditor's (1) Motion to Compel Attendance at Deposition and Request for Sanctions; and (2) Motion to Deem Requests for Admission, Set One, Admitted and Request for Sanctions. (Minute Order, 03/14/24.) Pursuant to that ruling, the Court ordered Judgment Debtor to pay sanctions of \$1,112.82 to Judgment Creditor's counsel within 20 days' notice. (Ibid.)

On May 7, 2024, at the Order to Show Cause Re: Legal Representation, Judgment Debtor failed to appear and the Court struck its Answer. (Minute Order, 05/07/24.) The Court also set an Order to Show Cause Re: Default/Default Judgment for November 5, 2024. (Ibid.) Judgment Creditor's request for entry of default was entered on November 5, 2024. Default judgment was entered on June 23, 2025, in the amount of \$8,027.00

principal and \$1,089.05 costs. (Default Judgment, 06/23/25, ¶6.)

Judgment Creditor filed and served the instant Motion to Compel Responses to Request to Inspect Writings to Enforce Order Dated March 14 2024, and Request for Sanctions, on August 12, 2026. No opposition has been filed to date.

Discussion

The Motion is brought pursuant to Code of Civil Procedure sections 680.230, 680.270, and 708.030 on the grounds that any court order requiring the payment of money is treated as a judgment.

Monetary sanction orders are enforceable through the execution of judgment laws. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial 3 (1994) ¶¶ 9:344.21, 9:344.22, p. 9(1)–92.) These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction. (See §§ 680.230, 680.270, 699.510, subd. (a); Jones v. Otero, supra, 156 Cal.App.3d at p. 759, 203 Cal.Rptr. 90.)

(Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615.) Enforcement of judgment laws provide that the judgment creditor may demand that the judgment debtor produce and permit the inspection of a document if the demand requests information to aid in the enforcement of the money judgment. (Code Civ. Proc., § 708.030, subd. (a).) The judgment debtor must respond and comply with the demand within 30 days of its service. (Code Civ. Proc., § 708.030, subd. (a); Code Civ. Proc., § 2031.260.)

Judgment Creditor's counsel contends they served Judgment Debtor with the Request to Inspect Writings to Enforce Order dated 3-14-24 on March 11, 2026, by mail. (Motion, Gentino Decl., ¶2.) However, the only discovery attached to the Motion is the Interrogatories to Enforce Order Dated 3-14-24, which was served on Judgment Debtor on April 5, 2024. (Id. at Exh. 1, p. 4.) Therefore, the Motion does not demonstrate service of the discovery request that is the basis of the Motion to Compel.

Conclusion

Based on the foregoing, Judgment

Creditor Richard Heng Taing dba USA Donuts' Motion to Compel Responses to Request to Inspect Writings to Enforce Order Dated March 14, 2024, and Request for Sanctions, is denied without prejudice.

Moving party to give notice.